

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, September 02, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, September 02, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-00174	Joel Guerrero, et al. vs Sostenes Gallegos
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

Order to Show Cause

Appearance required.

25CV-04106	Michael Andrade vs Brandon Ellison, et al.
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Motion for Order Enforcing Lien and Authorizing and Directing Payment of Settlement Proceeds to Lien Claimant

The motion for order enforcing lien and authorizing and directing payment of settlement proceeds to lien claimant is GRANTED.

Counsel for DCSS is to prepare an order for this Court's signature.

Motion to Compel Further Verified Responses by Defendant Marianne Daughdrill to Form Interrogatories, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Form Interrogatory, Set One, No. 2.13, is GRANTED.

Form Interrogatory No. 2.13 does not invade Defendant's privacy to where Defendant should be relieved from providing a response.

The motion to compel a further response to Form Interrogatory, Set One, No. 4.1, is DENIED. Defendant's response is substantially code-compliant.

The motion to compel a further response to Form Interrogatory, Set One, No. 15.1, is DENIED.

Defendant's response is substantially code-compliant. Defendant stated that they are unable to provide facts in support of the affirmative defenses at this time and that discovery is incomplete and ongoing. This is in essence a statement of insufficient knowledge at this time as well as a statement of efforts to obtain the information through discovery.

The motion to compel further responses to Form Interrogatory, Set One, No. 17.1, is GRANTED.

Defendant is to provide further responses to Form Interrogatories, Set One, No. 17.1, including the subparts, for the responses to each request for admission that is not an unqualified admission.

Defendant is to provide further code-compliant, verified responses, to Form Interrogatories, Set One, Nos. 2.13 and 17.1 within fifteen (15) days of this court's order.

Motion to Compel Further Verified Responses by Defendant Marianne Daughdrill to Requests for Admissions, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Requests for Admission, Set One, No. 28, is DENIED. The request is overbroad as written.

The motion to compel a further response to Requests for Admission, Set One, No. 29, is DENIED. The request is overbroad as written.

The motion to compel a further response to Requests for Admission, Set One, No. 30, is GRANTED.

The request is not overbroad and is relevant. The fact that Defendant may have been on lunch at the time of the incident does not preclude Defendant from providing a code-compliant response.

The motion to a compel further response to Requests for Admission, Set One, No. 31, is GRANTED.

The request is not overbroad and is relevant. The fact that Defendant may have been on lunch at the time of the incident does not preclude Defendant from providing a code-compliant response.

Defendant is to provide further code-compliant, verified responses, to Requests for Admission, Set One, Nos. 30 and 31 within fifteen (15) days of this court's order.

Motion to Compel Further Verified Responses and Production by Defendant Marianne Daughdrill to Demands for Production, Set One, And Request for Monetary Sanctions

The motion to compel a further response to Demands for Production, Set One, No. 4, is DENIED.

Defendant's response is substantially code-compliant as it is an objection only response. To the extent one has not been provided, Defendant is to provide a privilege log based on its privilege objection.

The motion to compel a further response to Demands for Production, Set One, No. 20, is GRANTED.

As there is no statement of compliance, Defendant's response leaves open the possibility that further responsive documents may exist. If all responsive documents have been produced, Defendant is to provide a further response that includes a statement of compliance pursuant to Code of Civil Procedure section 2031.220.

The motion to a compel further response to Demands for Production, Set One, No. 21, is GRANTED.

As there is no statement of compliance, Defendant's response leaves open the possibility that further responsive documents may exist. If all responsive documents have been produced, Defendant is to provide a further response that includes a statement of compliance pursuant to Code of Civil Procedure section 2031.220.

Defendant is to provide further code-compliant, verified responses, to Demands for Production, Set One, Nos. 20 and 21 within fifteen (15) days of this court's order.

Sanctions

All requests for monetary sanctions are DENIED.

The Court finds, under the present circumstances, that the imposition of sanctions against either party would be unjust.

Appearance required. An affidavit of unsuccessful service on Respondent was filed August 20, 2026.

26CV-04339 Nathaniel McCarthy vs Star Martinez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service on Respondent was filed August 19, 2026.

26CV-04036 Petition of: Cheila Murguia

Order to Show Cause Re: Name Change

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, September 02, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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14CV-00270	Discover Bank vs. Tirith Batther
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Order to Show Cause Re: Dismissal

On November 5, 2019, Plaintiff filed a Notice of Settlement indicating the parties agreed to a conditional settlement and that a request for dismissal would be filed no later than July 1, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the case pursuant to rule 3.1385(c)(2) of the California Rules of Court.

24CV-04718	Citibank N.A. vs. Tiffany Muniz
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Court Trial

Appearance required.

26CV-00382

LVNV Funding LLC vs. Rosemary Musquez

Motion for Order Deeming Admitted Requests for Admissions

The unopposed motion by plaintiff LVNV Funding LLC for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Rosemary Musquez is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that defendant has not served a response to Plaintiff's requests for admission prior to the hearing. In accordance with Code of Civil Procedure sections 2023.030(a) and 2033.280(c), the Court imposes a mandatory monetary sanction against Defendant in the amount of \$310.00 due and payable to Plaintiff LVNV Funding LLC thirty days from notice of entry of order.

The Court will sign the proposed order submitted with the moving papers. Plaintiff is directed to provide notice of the order to Defendant.

26CV-04193

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Trials
Temporary Judge Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, September 02, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
24CV-03134	JPMorgan Chase Bank, N.A. vs. Jose Magana
Court Trial	
Appearance required.	
25CV-00886	Discover Bank vs. Kyle Baron
Court Trial	
Appearance required.	
25CV-01531	Cen Cal Land & Cattle Company, LLC vs. Herlindo Moreno, et al.
Court Trial	
Appearance required.	

25CV-04006

Jefferson Capital Systems, LLC vs. Maria Ayala Sanchez

Court Trial

Appearance required.

25CV-05652

LVNV Funding LLC vs. Elizabeth Fedora

Court Trial

Appearance required.
